

Judgment Sheet
IN THE PESHAWAR HIGH COURT, PESHAWAR
JUDICIAL DEPARTMENT

Cr.Appeal No. 641-P/2025

JUDGMENT

Date of hearing.....**24.06.2026**.....

Appellant (Sharafat Kazmi) By Ms. Farhana Marwat, Advocate.

Respondent. (State) Mr. Abdur Rauf Afridi, AAG.

ABDUL FAYAZ, J.- Through the instant appeal, preferred under Section 410 of the Code of Criminal Procedure, 1898 read with Section 24 of the Khyber Pakhtunkhwa Control of Narcotic Substances Act, 2019, the appellant, Sharafat Kazmi, has assailed the judgment dated 21.06.2025 passed by the learned Additional Sessions Judge-II/Special Judge, Mardan, in case FIR No.65 dated 22.08.2023, registered under Section 9(d) of the Khyber Pakhtunkhwa Control of Narcotic Substances Act, 2019 at Police Station Excise, Mardan. By the impugned judgment, the appellant was convicted under Section 9(d) of the Act *ibid* and sentenced to imprisonment for life with a fine of Rs.1,000,000/- (Rupees One Million) and, in default of payment thereof, to further undergo simple imprisonment for six months. Benefit of Section 382-B Cr.P.C. was also extended to him.

2. Succinctly stated, the prosecution case, as unfolded in the *Murasila* (Ex.PA/1), is that on

22.08.2023 at 15:00 hours Inspector Akif Nawaz along with other officials of the Excise Department were present on routine patrol and checking duty with a view to curbing narcotics trafficking. During the course of patrol, they noticed a Honda Motorcar bearing Registration No. LEJ-6121 approaching from the Toru side, which was signalled to stop for checking. The driver disclosed his identity as Sharafat Kazmi (the appellant). During preliminary interrogation, the appellant admitted that narcotics were concealed in the vehicle. Acting upon such disclosure, the Excise officials searched the luggage compartment (Diggi) of the vehicle and recovered three (03) plastic sacks, each containing twenty (20) packets of charas, making a total of sixty (60) packets. Each packet weighed 1,200 grams, bringing the total recovered quantity to 72 kilograms of charas. From each packet, five grams were separated as representative samples, sealed into parcels Nos.1 to 60, while the remaining bulk quantity was sealed into parcels Nos.61 to 63 after affixing the official seal bearing the monogram of "E&T" thereon. The recovery proceedings were reduced into writing vide Recovery Memo (Ex.PW-2/1), the appellant was arrested through Arrest Card (Ex.PW-3/2), and the *Murasila* (Ex.PA/1) was dispatched through Constable

Kaleem Ullah (PW-04) to Police Station Excise, Mardan, where the formal FIR was registered. Investigation was thereafter entrusted to Inspector Sohail Muhammad Khan, who visited the place of occurrence, prepared the site plan (Ex.PB), recorded the statements of witnesses under Section 161 Cr.P.C, completed the remaining formalities of investigation and submitted the report under Section 173 Cr.P.C.

3. Upon completion of the investigation, the appellant was sent to face trial before the learned Special Court. A formal charge was framed against him, to which he pleaded not guilty and claimed trial. In order to substantiate the charge, the prosecution examined six (06) witnesses and produced evidence. After the prosecution closed its evidence, the appellant was examined under Section 342 Cr.P.C, wherein he denied the prosecution allegations in toto, professed his innocence, declined to make a statement on oath under Section 340(2) Cr.P.C., and opted not to produce any evidence in his defence. Upon appraisal of the evidence available on the record, the learned trial Court found the prosecution case proved beyond reasonable doubt and, vide the impugned judgment dated 21.06.2025, convicted and sentenced the appellant as stated hereinabove, hence, this appeal.

4. We have heard arguments of learned counsel for the appellant as well as learned Additional Advocate General and gone through the record with their able assistance.

5. Before embarking upon the merits of the controversy, it would be advantageous to briefly advert to the background of the present proceedings. The appellant was initially convicted and sentenced by the learned Additional Sessions Judge-IX, Mardan, vide judgment dated 22.07.2024. Feeling aggrieved, he preferred an appeal before this Court. The said appeal was disposed of vide judgment dated 30.01.2025, whereby the matter was remanded to the learned trial Court for the limited purpose of formally exhibiting certain documents which had inadvertently remained unmarked during trial and thereafter recording a fresh statement of the appellant under Section 342 Cr.P.C. with reference thereto. In compliance with the directions issued by this Court, the learned trial Court recalled the Investigating Officer, recorded his statement as RPW-05, formally exhibited the relevant documents, re-examined the appellant under Section 342 Cr.P.C, and thereafter, upon fresh appraisal of the entire evidence, rendered the impugned judgment dated 21.06.2025, which is the subject matter of the present appeal.

6. Perusal of record reveals that on 22.08.2023 the appellant, while driving Honda Motorcar bearing Registration No. LEJ-6121, was intercepted by the Excise Police during routine patrolling and checking at Marhati Road near Wali Interchange within the jurisdiction of Police Station Excise, Mardan. The appellant was found to be the sole occupant and driver of the vehicle. During interrogation, he disclosed the presence of narcotics concealed in the luggage compartment (diggi) of the vehicle. Acting upon such disclosure, the Excise officials recovered three plastic sacks containing sixty packets of charas, each weighing 1,200 grams, making the total recovery 72 kilograms. Samples were drawn from each packet in accordance with the prescribed procedure, sealed separately with the official seal bearing the monogram "E&T", while the remaining bulk quantity was also sealed at the spot. The entire recovery proceedings were contemporaneously reduced into writing vide Recovery Memo (Ex.PW-2/1), leaving little room for any embellishment or fabrication.

7. The recovery is proved through the consistent and confidence-inspiring testimonies of PW-02 Dawood Khan (ASI), PW-03 Akif Nawaz Khan (Inspector/Recovery Officer) and PW-04 Kaleem Ullah (Constable), who remained unanimous

on every material aspect of the prosecution case. Their evidence inspires confidence as it is natural, straightforward and fully corroborative of each other regarding the interception of the vehicle, recovery of the narcotics, preparation of recovery memo, sampling, sealing of the parcels and dispatch of the case property to the Police Station. Despite searching cross-examination, no material contradiction, omission or improvement affecting the core of the prosecution case could be brought on record. The settled principle of law is that minor discrepancies, attributable to lapse of memory or normal errors of observation, are the hallmarks of truthful testimony and do not diminish the evidentiary value of otherwise reliable witnesses.

8. The prosecution has further succeeded in establishing an unbroken chain of safe custody of the recovered contraband. PW-06 Wisal Khan, Muharrir, categorically deposed that immediately upon receipt of the case property, the same was deposited in the Malkhana and entered in Register No.19. PW-01 Muhammad Ahmad Constable proved that the sealed sample parcels were received from the Malkhana and delivered intact to the Forensic Science Laboratory without any delay or interference. The Investigating Officer, PW-05 Sohail Muhammad Khan, produced the extract of Register No.19, the road certificate and

the Forensic Science Laboratory reports, all of which stood duly exhibited after remand by this Court. The appellant has failed to point out any missing link in the chain of custody or any circumstance indicating that the case property remained susceptible to tampering.

9. The report of the Forensic Science Laboratory constitutes strong corroborative scientific evidence. The report unequivocally confirms that the parcels received by the laboratory were duly sealed, the seals remained intact and tallied with the specimen impression, and the samples were found to contain charas. The evidentiary value of a positive FSL report, read with the unimpeached evidence regarding safe custody of the case property, lends complete assurance to the prosecution version. Significantly, the defence has not challenged either the genuineness of the FSL report or the integrity of the seals through any tangible evidence.

10. Learned counsel for the appellant laid considerable emphasis on the fact that during the first round of litigation this Court had remanded the case to the learned trial Court. We have carefully examined this aspect. The remand order was not founded upon any infirmity in the prosecution evidence regarding the recovery, possession or forensic examination of the narcotics rather, the matter was remitted merely to

enable the learned trial Court to formally exhibit certain documents already forming part of the record and thereafter to afford the appellant an opportunity of explaining the same in his statement under Section 342 Cr.P.C. The learned trial Court faithfully complied with those directions by recalling the Investigating Officer, exhibiting the relevant documents and recording the appellant's supplementary statement. The procedural irregularity having thus been completely cured, no prejudice has been demonstrated to have been occasioned to the appellant.

11. Similarly without substance is the contention that no private witness was associated with the recovery proceedings. The law is now well settled that evidence cannot be discarded merely because it emanates from police or Excise officials. Their testimony is to be evaluated on the same touchstone as that of any other witness. Where such evidence is found trustworthy, confidence-inspiring and free from any ulterior motive, conviction can safely be founded thereon even in the absence of independent witnesses. In the present case, the recovery was effected during routine checking on a public road, and there is nothing on record to suggest any prior acquaintance, enmity or motive on the part of the Excise officials to falsely implicate the appellant, who admittedly belongs to

Muzaffarabad, Azad Kashmir. It is wholly inconceivable that the officials would fabricate a case involving as much as 72 kilograms of charas against an absolute stranger by planting such an enormous quantity of narcotics.

12. The defence further attempted to derive benefit from the alleged variation in the weight of the recovered contraband when produced before the Court. We find no substance in this contention. The alleged difference is insignificant and stands reasonably explained by the natural process of evaporation, drying and the passage of time. Such minor variation neither affects the identity of the recovered substance nor casts any doubt upon the prosecution case, particularly when the seals remained intact and the Forensic Science Laboratory confirmed the samples to be charas. Likewise, the objection regarding the shape or appearance of the packets after production before the Court is of no legal consequence, as slight changes in shape or packing owing to handling and storage do not detract from the otherwise overwhelming evidence establishing recovery and safe custody.

13. It is an admitted position that the appellant was the sole occupant and driver of the vehicle from whose luggage compartment the narcotics were recovered. The vehicle remained in his exclusive

control and possession. In such circumstances, conscious possession stands fully established. Once exclusive possession is proved, the burden shifts upon the accused to furnish a plausible explanation regarding the presence of the contraband. The appellant, however, failed to offer any explanation whatsoever either during investigation or in his statement recorded under Section 342 Cr.P.C. He merely denied the prosecution allegations in a bald manner, did not opt to make a statement on oath under Section 340(2) Cr.P.C., nor did he produce any defence evidence. Such bare denial cannot outweigh the overwhelming prosecution evidence.

14. It is equally settled that defects or irregularities, if any, in the investigation do not by themselves furnish a ground for acquittal unless it is shown that such defects have caused serious prejudice to the accused or have rendered the prosecution case doubtful. In the present case, even assuming some procedural lapse occurred during investigation, the same stands eclipsed by the direct, cogent and trustworthy ocular account, duly corroborated by documentary as well as scientific evidence. No instance of misreading, non-reading or suppression of material evidence has been pointed out by the learned defence counsel.

15. Having independently re-appraised the entire evidence, we are fully satisfied that the prosecution has succeeded in establishing beyond reasonable doubt that the appellant was found in conscious and exclusive possession of 72 kilograms of charas, thereby rendering himself liable under Section 9(d) of the Khyber Pakhtunkhwa Control of Narcotic Substances Act, 2019. The learned trial Court has appreciated the evidence in its true perspective and has recorded findings which are firmly anchored in the record. We have not been able to detect any illegality, perversity, misreading or non-reading of evidence warranting interference in exercise of appellate jurisdiction.

16. As regards the sentence, we are of the considered opinion that the learned trial Court exercised its discretion judiciously. Considering the colossal quantity of narcotics recovered from the possession of the appellant and the grave menace posed by narcotic trafficking to society, the sentence of imprisonment for life with fine cannot by any stretch of imagination be termed harsh, excessive or disproportionate. Rather, the learned trial Court has already shown considerable leniency by not awarding the maximum sentence prescribed by law. Consequently, the sentence awarded is fully

commensurate with the nature of the offence and calls for no interference.

17. For the foregoing reasons, we hold that the prosecution has proved its case against the appellant beyond reasonable doubt through cogent, reliable and confidence-inspiring evidence, duly corroborated by unimpeachable documentary and scientific evidence. The impugned judgment dated 21.06.2025 passed by the learned Additional Sessions Judge-II/Special Judge, Mardan, is based upon a correct appraisal of the evidence and the applicable law and suffers from no illegality, infirmity or perversity. Consequently, finding no merit in this appeal, the same is dismissed, and the conviction and sentence awarded to the appellant are affirmed.

Announced:
24.06.2026.

J U D G E

J U D G E

*Hon'ble Mr. Justice Sahibzada Asadullah
Hon'ble Mr. Justice Abdul Fayaz*

/*Saif, SCS*/